Rafael Allan D. Alvarado

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I believe that Comelec has no authority to release the source code of the PCOS machine without the knowledge of Smartmatic. Smartmatic has the copyright of the said source code because it commissioned Dominion Voting System, a US-based company. If Comelec decides to release the source code of the machine, Smartmatic can sue Comelec for its breach of the copyright law of the Philippines. I believe that Smartmatic holds ownership of the source code for the PCOS machine because I believe that Smartmatic and Dominion Voting System have an employee and employer relationship. With regards to copyright law, if there is an employer and employee relationship, the employer holds the ownership based on their contract. I believe that Comelec has little to no rights to the source code of the machines because it is owned by Smartmatic, and it was only leased to Comelec. If Comelec wishes to present the source code to a group of IT experts, they should ask permission from Smartmatic.